

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, May 4, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25567 against Police Officer Adnan Hussain, Tax Registry No. 961531. The case was conferenced on April 4, 2023, before Deputy Commissioner of Trials Jeff S. Adler who approved the negotiated penalty of a forfeiture of Nineteen (19) vacation days, after a guilty plea.

Matthew Kadushin

Executive Director

New York City Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 19, 2023

Re: CCRB Case No. 202100617 (Incident Date: June 2, 2020) involving Police Officer Adnan Hussain, Tax No. 961531 (DADS No. 2022-25567), and Police Officer Adan Suazo-Rodas, Tax No. 963771 (DADS No. 2022-25566)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officers and has determined that, with regard to the allegations that both officers interfered with an individual's use of a recording device, the officers' actions did not reflect the alleged misconduct, and therefore, no disciplinary action is warranted.

A close review of the matter, including an extensive review of the video evidence accumulated by the CCRB, revealed that Officers Hussain and Suazo-Rodas approached an individual who was on a public sidewalk after the curfew had taken effect (which had been imposed by Emergency Executive Order No. 118). The individual was videotaping what had become a violent protest where multiple arrests were being effected. The officers told the individual to "go inside" as they approached him. This order was given in accordance with the curfew, which directed that after "8:00 pm on June 2, 2020 ... no persons ... may be in public." Because the direction to "go inside" was a lawful order, given in compliance with the curfew, the officers' actions were proper.

The officers' direction to "go inside" was also prudent and lawful considering the risk to the public's safety outside, as bottles and debris were being throw in the immediate area by protesters. Finally, it should be noted that the individual was never directed to stop recording by the officers, and he did in fact continue to record for several minutes after the interaction with them.

Therefore, with regard to Police Officer Hussain, the Police Commissioner intends to dismiss the charges and specifications in this matter and issue a Schedule "B" Command Discipline, with a penalty of ten (10) vacation days, for the two substantiated force allegations; however no disciplinary action will be imposed for the allegation that Officer Hussain interfered with the individual's use of a recording device. With regard to Police Officer Suazo-Rodas, the Police Commissioner intends to

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impose the same penalty recommended by the CCRB, a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, but this penalty would only be applicable to the sole force allegation. As with Police Officer Hussain, Police Officer Suazo-Rodas will receive no disciplinary action for the allegation that he interfered with the individual's use of a recording device.

Sincerely, 7



Craig M. Contrera
Inspector
Executive Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

July 28, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202100617 (Incident Date: June 2, 2020) involving Police Officer Adnan Hussain, Tax No. 961531 (DADS No. 2022-25567), and Police Officer Adan Suazo-Rodas, Tax No. 963771 (DADS No. 2022-25566)

Commissioner Caban:

I am writing in response to the letter from Inspector Craig M. Contrera, dated July 19, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to, firstly, dismiss the Charges and Specifications in this matter as they pertain to Police Officer Hussain and instead issue a Schedule “B” Command Discipline, with a penalty of ten (10) vacation days for the two substantiated force allegations, with no disciplinary action to be imposed pertaining to the allegation that he interfered with the recording device, and, secondly, in regards to Police Officer Suazo-Rodas, of your intent to recommend the same penalty recommended by CCRB of a Schedule “B” Command Discipline with a forfeiture of ten (10) vacation days, however with the same exception that he will not receive any disciplinary action pertaining to the allegation he interfered with a recording device. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Craig M. Contrera’s notification.

Inspector Craig M. Contrera stated that after reviewing the recommendation of CCRB, you determined that the specific misconduct of interfering with a recording device alleged to have been committed by both above officers, did not rise to the level where imposition of any disciplinary action is warranted. CCRB disagrees with your recommendation.

The negotiated penalty for each officer was based on charges substantiated by the Board and penalties proscribed by the NYPD Disciplinary Matrix. CCRB took into account the chaotic nature of the incident as well as the nature of each officers’ actions during the incident. Additionally, this negotiated penalty was accepted by ADCT Jeff Adler during the plea conference held on April 4, 2023.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the Charges and Specifications against PO Hussain not be dismissed and the negotiated penalty of the forfeiture of nineteen (19) vacation days be imposed. With regards to PO Sauzo-Rodas, at the plea conference PO Suazo-Rodas acknowledged substantiation of the charges and evidence supports the interference with the recording device when PO Suazo-Rodas ordered the complaining witness,

§ 87(2)(b)

to go back inside his building as he was recording the events of that evening from inside the threshold of his building. As such, CCRB requests that the Police Commissioner accept ADCT Adler's endorsement of the plea, put forth by CCRB, in the herein matter of a Schedule B Command Discipline and forfeiture of ten (10) vacation days, applicable to both specifications in this case.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Jonathan Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.